



APPLIANCE STANDARDS
AWARENESS PROJECT



July 31, 2023

By E-mail

Ms. Ashley Armstrong
Senior Advisor / Director Regulatory Programs Buildings
Department of Energy
Building Technologies Program
Mailstop EE-5B
1000 Independence Avenue, SW
Washington, DC 20585-0121

AirCleaners2021STD0035@ee.doe.gov

Re: Joint Comments on DOE's Notice of Proposed Rulemaking on Energy Conservation Standards for Air Cleaners; Docket No. EERE-2021-BT-STD-0035; RIN 1904-AF26

Dear Ms. Armstrong:

The American Council for an Energy-Efficient Economy (ACEEE), the Appliance Standards Awareness Project (ASAP), the Association of Home Appliance Manufacturers (AHAM), Consumer Federation of America (CFA), and the Natural Resources Defense Council (NRDC) (collectively, the Joint Commenters) respectfully submit the following comments to the Department of Energy (DOE or Department) on its Notice of Proposed Rulemaking on Energy Conservation Standards For Air Cleaners; EERE-2021-BT-STD-0035; RIN 1904-AF26; 88 Fed. Reg. 215412 (April 11, 2023).

The Joint Commenters, which represent varying points of view, are unified in our support for DOE's efforts to save energy and ensure a national marketplace through the Appliance Standards Program. To this end, on August 23, 2022, we submitted for DOE's consideration a Joint Statement of Joint Stakeholder Proposal On Recommended Energy Conservation Standards And Test Procedure For Consumer Room Air Cleaners (Joint Proposal).

Central to our agreement are the proposed timelines for compliance. In our Joint Proposal, we asked DOE to publish final rules adopting the consumer air cleaner test procedure and standards as soon as possible, and no later than December 31, 2022. We stated that if DOE does not meet that deadline, each of the Joint Stakeholders (AHAM, ASAP, ACEEE, CFA, NRDC, New York State Energy Research and Development Authority (NYSERDA), and Pacific Gas and Electric Company (PG&E)) reserve the right to rescind support for the standards and compliance dates in the Joint Proposal. Although DOE did not publish a direct final rule (and accompanying notice

of proposed rulemaking) by that deadline, it did so as quickly as possible, by April 11, 2023. The Joint Commenters appreciate DOE's swift action and we file these comments in joint support of the direct final rule and proposed rule. As we stated in the Joint Proposal, the standards therein, which DOE has implemented via the direct final rule, are economically justified and technically feasible and will achieve significant savings for this product category.

Of importance, we note, that the timeline for compliance is tight, with the first tier of standards with which compliance will be required having a compliance date of December 31, 2023. And, DOE has not yet proposed or finalized reporting criteria. Thus, though we continue to support this compliance date, we strongly urge DOE to quickly propose and finalize reporting criteria and provide a reporting template so that manufacturers have a means to demonstrate compliance. Manufacturers need to know the criteria that will be required for reporting in order to begin completing their compliance and reporting efforts. These efforts must begin immediately given the short runway to compliance.

We also note that we have reviewed the comments submitted as of the date we wrote these comments. There is a comment that suggests that certain products may have difficulty meeting the standards because the test procedure does not accurately measure the efficiency of the product. As DOE is aware, test procedure waivers are a viable pathway for such products and DOE should still proceed with the direct final rule.

The Joint Commenters

ACEEE, a nonprofit research organization, develops transformative policies to reduce energy waste and combat climate change. With our independent analysis, we aim to build a vibrant and equitable economy – one that uses energy more productively, reduces costs, protects the environment, and promotes the health, safety, and well-being of everyone.

ASAP organizes and leads a broad-based coalition effort that works to advance, win, and defend new appliance, equipment, and lighting standards that cut emissions that contribute to climate change and other environmental and public health harms, save water, and reduce economic and environmental burdens for low- and moderate-income households.

AHAM represents more than 150 member companies that manufacture 90% of the major, portable and floor care appliances shipped for sale in the U.S. Home appliances are the heart of the home, and AHAM members provide safe, innovative, sustainable and efficient products that enhance consumers' lives. The home appliance industry is a significant segment of the economy, measured by the contributions of home appliance manufacturers, wholesalers, and retailers to the U.S. economy. In all, the industry drives nearly \$200 billion in economic output throughout the U.S. and manufactures products with a factory shipment value of more than \$50 billion.

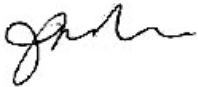
CFA is an association of more than 250 non-profit consumer and cooperative groups that was founded in 1968 to advance the consumer interest through research, advocacy, and education.

NRDC is an international nonprofit environmental organization with more than 3 million members and online activists. Since 1970, our lawyers, scientists, and other environmental

specialists have worked to protect the world's natural resources, public health, and the environment. NRDC has offices in New York City, Washington, D.C., Los Angeles, San Francisco, Chicago, Bozeman, MT, and Beijing.

The Joint Commenters appreciate the opportunity to submit these comments in support of DOE's direct final rule and proposed rule on energy conservation standards for air cleaners and would be glad to discuss these matters in more detail should you so request.

Respectfully Submitted,



Jennifer Amann
Senior Fellow
American Council for an Energy-Efficient Economy



Joanna Mauer
Technical Advocacy Manager
Appliance Standards Awareness Project



Jennifer Cleary
Vice President, Regulatory Affairs
Association of Home Appliance Manufacturers



Richard Eckman
Energy Policy Associate
Consumer Federation of America



Joe Vukovich
Energy Efficiency Advocate
Natural Resources Defense Council